

Defendants argue that both *Johnson* and *Patton* matters name Surgery Partners, Inc. (“Surgery Partners”) as a defendant and that Surgery Partners is the parent company of its subsidiaries and is affiliated with several entities nationwide providing surgical and ancillary services which include multi-specialty physician practices and anesthesia services. (Declaration of Stefanie Trautvetter (“Trautvetter Decl.”) at ¶ 3.) Specifically, Defendants note that Surgery Partners is the parent company and affiliated with all of the various named entities identified in *Johnson*, *Patton* and *Provencio* actions. (*Id.* at ¶¶ 3-15.) As a consequence,

Plaintiffs argue in opposition that the parties are not the same; however, as noted by Defendants in their moving papers, while Aspen is not a named defendant in the *Johnson* and *Patton* actions, Aspen is one of several subsidiaries of Surgery Partners, Inc., which is a named defendant in both *Johnson* and *Patton*. (Trautvetter Decl., ¶¶ 6, 12.) Furthermore, the putative class Plaintiffs seek to represent are the same in each of the related actions—they cover the same time period, claims, and group of employees. (See, e.g., *Alch v. Superior Court* (2004) 122 Cal.App.4th 339, 363 fn. 8 [“where the prospective class is the same, the identity of the named plaintiffs does not affect the question whether a FEHA class action in state court is, or is not, barred by section 12965(b).”].)

Plaintiffs’ remaining arguments are largely directed at the substantive benefits of coordination but do not squarely address the issue of exclusive concurrent jurisdiction.

Because the Court finds that the conditions for application of concurrent exclusive jurisdiction exist here, an order staying this action is mandatory. (See *Plant Insulation Co.*, *supra*, 224 Cal.App.3d at 787 [“An order of abatement issues as a matter of right not as a matter of discretion where the conditions for its issuance exist.”].)

Conclusion

The motion is **granted** and this proceeding is stayed until one of the following occurs:

- a. The *Johnson* and *Patton* actions are finally resolved by judgment, settlement, or otherwise;
- b. The coordination motion judge, or if Plaintiffs’ petition is granted, the coordination trial judge, issues an order that the stay is lifted in whole or in part; or
- c. The Court enters a further order upon the noticed motion of either side.

19. 9:00 AM CASE NUMBER: C25-01967
CASE NAME: PARAS GIRDHAR VS. HYUNDAI MOTOR AMERICA
*HEARING ON MOTION IN RE: ATTORNEY’S FEES, COSTS, AND EXPENSES
FILED BY: GIRDHAR, PARAS
TENTATIVE RULING:

Summary

Plaintiff Paras Girdhar’s (“Plaintiff”) Motion for Attorney’s fees and costs against Defendant Hyundai North America (“Defendant” or “Hyundai”) is **granted** as set forth herein.

Background

This litigation is a Song-Beverly (“Lemon Law”) action. On April 29, 2025, Plaintiff purchased a Hyundai Santa Fe (“Subject Vehicle”) from one of Defendant’s authorized retailers. During the warranty period, the vehicle contained and/or developed defects, including the Air Conditioner defect, for which Plaintiff was repeatedly forced to return to Defendant’s authorized repair facilities. Despite Plaintiff’s multiple presentations of the Subject Vehicle, Defendant and its authorized repair facilities were unable to conform the Subject Vehicle to its warranty. Dissatisfied with Defendant’s unsuccessful efforts to repair the Subject Vehicle, Plaintiff contacted Defendant on June 6, 2025, seeking assistance under California Lemon Law. Plaintiff advised Defendant of the ongoing problems experienced with the Subject Vehicle since acquired and requested a buy back.

Seventy two (72) days later, on or about July 10, 2025, the parties reached a settlement via Defendant’s informal offer whereby Defendant agreed to repurchase the Subject Vehicle and pay Plaintiff’s attorney fees and costs pursuant to a noticed motion (“Settlement”). Singh Decl. ¶ 10, Ex. 2. The Parties further agreed that Plaintiff’s attorney fees and costs could be decided by motion, and that Plaintiff was the prevailing party for purposes of this Motion.

On November 24, 2026, Plaintiff filed this Motion for Attorney's fees and Costs pursuant to the Song-Beverly Consumer Warranty Act, Civ. Code § 1794(d), requesting an award of attorney fees in the total amount of \$13,680.03, including: (1) \$8,633.00 incurred in attorney fees; (2) an additional \$4,000.00 for Plaintiff’s counsel to review Defendant’s Opposition, draft the Reply brief, and attend the hearing on this Motion (though they expect to spend over ten hours on the same); (3) \$522.03 in Plaintiff’s uncontested costs and expenses; (4) and \$525.00 in anticipated costs and expenses for a court reporter for the hearing on the instant Motion. The Motion was accompanied by Notice, Amended Notice, Memorandum of Points and Authorities, the Declaration of Counsel Gunwant Singh and Memorandum of Costs.

On March 12, 2026, Defendant filed opposition to this Motion, claiming, essentially, that the fees requested are excessive, given that the case settled within a few days of within Defendant’s repurchase offer and before Defendant appeared in this case. Defendant’s counsel argues the Court should award Plaintiff’s Counsel \$2,500 for fees and costs—the reasonable amount previously offered by Defendant. But even if the Court looks at the entire fee bill, the Court should deny the inflated, excessive and unreasonable fees incurred by Plaintiff’s Song-Beverly attorneys, and award Plaintiff no more than \$3,240 in fees.

Analyses

An award of attorney fees and costs to Plaintiff as the prevailing party in this Song-Beverly case is mandatory. Cal. Civ. Code § 1794(d) states:

If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.

This fee and cost recovery provision reflects the Legislature's intent to provide "injured consumers strong encouragement to seek legal redress" for Lemon Law claims. *Murillo v. Fleetwood Enterprises, Inc.* (1998) 17 Cal.4th 985, 994; *Robertson v. Fleetwood Travel Trailers of California, Inc.* (2006) 144 Cal.App.4th 785, 817; *Wohlgemuth v. Caterpillar, Inc.* (2012) 207 Cal.App.4th 1252, 1262 ("[T]he provision for recovery of costs and attorney fees in Section 1794(d) is an important aspect of this consumer protection, and without it many would not be financially able to pursue a remedy."

Under California law, the lodestar/multiplier is the primary method for determining what fees are "reasonable" under the statutory attorney fees provision of Song Beverly. *Robertson, supra*, at 818-819. See also *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1135 (California Supreme Court endorsing the lodestar method as the prevailing method for statutory fee awards. The lodestar approach "anchors the trial court's analysis to an objective determination of the attorney's services, ensuring the amount awarded is not arbitrary." *Graciano* at 154

California law also gives trial courts unilateral discretion to reduce attorney fee amounts in any way they choose. See *Mikaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5th 240 ("A trial court may not rubber stamp a request for attorney fees but must determine the number of hours reasonably expended."); *Donahue v. Donahue* (2010) 182 Cal.App.4th 259, 271 ("[T]rial courts must carefully review attorney documentation of hours expended; 'padding' in the form of inefficient or duplicative efforts is not subject to compensation."); *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132. Courts should consider "whether the case was overstaffed, how much time the attorneys spent on particular claims, and whether the hours were reasonably expended." See *Christian Research Inst. v. Alnor* (2008) 165 Cal.App.4th 1315, 1320.

Applied here, after reviewing the declarations of both counsel, applying the *Lodestar* Factors, and reviewing the facts of this case, the Court finds that the amount of hours that Plaintiff's counsel intends to seek exceed the reasonable amount of fees that should have been expended to settle this case. This case settled two months and eleven days after the complaint was filed, and before Defendant made an appearance. The Court acknowledges that there are fees expended in prosecuting this case from the outset. However, the Court presumes that all billable work should have stopped upon settlement and the only work expended for this file should be this motion for attorney's fees and costs, and any residual wrap-up to finalize the Settlement. In reviewing the work performed on this file by Plaintiff's counsel, the Court finds that work performed on this motion, along with the billable hours expended by counsels working on this file, demonstrates that there were inefficiencies in having more than one attorney work on this file. The costs for a court reporter are speculative and not incurred, and the fees for preparing a reply brief to this motion appear to excessive. Taking these circumstances into consideration, the Court finds that a reduction in the amount of 65% of the fees are reasonable and exercises its discretion to award 35% of the fees requested, given the rapid settlement of this case.

Ruling

1. Plaintiff's Motion is **granted**.
2. Plaintiff is awarded \$4,762.81 in attorney's fees.
3. Plaintiff is awarded \$522.03 in costs pursuant to its Memorandum of Costs filed on October 10, 2025.

4. Fees and costs shall be paid no later than thirty (30) days from the date of notice of entry of this order.
5. Plaintiff's counsel shall prepare a proposed order conforming to the foregoing, attaching the court's tentative ruling no later than five (5) days from the date of this hearing.

20. 9:00 AM CASE NUMBER: C25-02024

CASE NAME: CHRISTY WILLIAMS VS. SP MANAGEMENT SERVICES, INC.

***HEARING ON MOTION IN RE: TO ABATE OR IN ALT MOTION TO STAY PROCEEDINGS**

FILED BY: NATIONAL SURGICAL HOSPITALS, LLC

TENTATIVE RULING:

Before the Court is Defendant SP Management Services, Inc., Pain Management Associates Inc., Sequoia Surgical Pavilion LLC, NSH California, LLC, NSH Management of California, LLC, National Surgical Hospitals, LLC, Sequoia Surgical Center, L.P., Sequoia Surgical Center Holding Company, LLC, Surgery Partners (collectively, "Defendants") motion to abate the class action and representative PAGA First Amended Complaint or, in the alternative, move to stay the proceedings on the grounds that earlier-filed class and PAGA actions are currently pending that encompass the claims set forth in this case. In opposition, Plaintiff requests only that the Court stay the action rather than abate it.

The motion is **granted** and this proceeding is stayed until one of the following occurs:

- a. The *Johnson*, *Williams*, and *Patton* actions are finally resolved by judgment, settlement, or otherwise;
- b. The coordination motion judge, or if Plaintiff's petition is granted, the coordination trial judge, issues an order that the stay is lifted in whole or in part; or
- c. The Court enters a further order upon the noticed motion of either side.

21. 9:00 AM CASE NUMBER: C25-02316

CASE NAME: ANTHONY PROVENCIO VS. ASPEN SURGERY CENTER, LLC,

***HEARING ON MOTION IN RE: TO ABATE**

FILED BY: ASPEN SURGERY CENTER, LLC,

TENTATIVE RULING:

Before the Court is Defendant Aspen Surgery Center, LLC ("Defendant")'s motion to abate the class action complaint or, in the alternative, motion to stay the proceedings on the grounds that two earlier-filed class actions are currently pending that encompass the claims set forth in this case (and that exclusive concurrent jurisdiction applies). Plaintiff Anthony Provencio and Plaintiff Darlene Yvonne Enersen (collectively, "Plaintiffs") oppose the motion on several grounds.

As a threshold issue, Courts have held that the rule of exclusive concurrent jurisdiction is subject to waiver and should be raised by demurrer where the issue appears on the face of the complaint and by answer where factual issues must be resolved, followed by a motion to abate or for summary judgment. (*People ex rel. Garamendi v. American Autoplan, Inc.* (1993) 20 Cal.App.4th 760, 771; see *BBBB Bonding Corp. v. Caldwell* (2021) 73 Cal.App.5th 349, 374.) Defendant did not raise the issue by demurrer or answer. The Court declines to find waiver, however, because Plaintiffs have not argued